

5. 9:00 AM CASE NUMBER: C25-03125
CASE NAME: JAMES GUIDRY VS. FELICIA PHO
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY:
TENTATIVE RULING:

Defendant Felicia Pho's motion to strike punitive damages allegations is **denied**.

Background

This is an action for breach of the implied warranty of habitability and related claims arising from a residential tenancy. The following facts are taken from the allegations of Plaintiff James Guidry's complaint filed on October 24, 2025, which the court accepts as true for purposes of this motion.

Plaintiff resided at 517 Eaker Way in Antioch, pursuant to a written lease agreement between Plaintiff's spouse Patricia Costa and Defendant. (Complaint ¶ 9.) The complaint alleges that at the time of Plaintiff's move-in, the premises were infested with ants and cockroaches, that water leaked from a light fixture in the primary bedroom into the first-floor bathroom, and that the premises had a faulty electrical wiring system causing constant outages. (*Id.* ¶ 15.) Plaintiff alleges he notified Defendant of these conditions, that Defendant responded that Plaintiff would need to pay for repairs himself, and that Plaintiff hired a plumber on multiple occasions to seal the bathtub and toilet without success, for which he was never reimbursed. (*Id.* ¶ 16.) The complaint further alleges that the Housing Authority of the County of Contra Costa inspected the property on May 16, 2024, and that the unit failed the inspection due to multiple habitability issues, after which Defendant served Plaintiff and his family with a sixty-day notice to move out, claiming the need to make repairs but denying relocation assistance. (*Id.* ¶¶ 17-18.) Plaintiff alleges he and his family vacated the premises on May 30, 2024, due to Defendant's alleged harassment. (*Id.* ¶ 19.)

The complaint asserts five causes of action based on these allegations: (1) tortious breach of the implied warranty of habitability under Civil Code sections 1941 et seq.; (2) breach of the covenant of quiet enjoyment under Civil Code section 1927; (3) contractual breach of the implied warranty of habitability under Civil Code section 1941; (4) violation of the Antioch Tenant Protection Ordinance; and (5) constructive eviction based on negligence. The complaint also includes a separate claim for exemplary damages, alleging that Defendant "intentionally violated Plaintiff's rights and retaliated against Plaintiff for enforcing [his] rights as a tenant" (Complaint ¶ 58), and that Defendant's conduct was willful and undertaken in conscious disregard of Plaintiff's rights within the meaning of Civil Code section 3294. (*Id.* ¶ 59, Prayer, C.)

Defendant moves to strike Plaintiff's punitive damages allegations on the ground that the complaint fails to plead facts, as opposed to conclusions, sufficient to establish oppression, fraud, or malice under Civil Code section 3294. Defendant argues that leave to amend should be denied because Plaintiff will not be able to cure the defect.

Plaintiff opposes the motion, arguing that the complaint adequately alleges that Defendant knew of longstanding defective conditions and failed to correct them, and retaliated against Plaintiff and his family by serving a notice to move out shortly after the failed housing inspection. If the court is inclined to grant the motion, Plaintiff requests leave to amend.

Meet and Confer

The motion is supported by the declaration of counsel, Shelly Stuppiello, attesting that the parties met

and conferred by telephone on December 2, 2025, and that Plaintiff's counsel declined to stipulate to removal of the punitive damages prayer, satisfying Code of Civil Procedure section 435.5.

Legal Standards

Punitive damages are appropriate when a defendant acted with malice, oppression, or fraud. (Civ. Code, §3294, subd. (a).) "Malice" is defined as conduct intended to cause injury to a person or despicable conduct carried on with a willful and conscious disregard for the rights or safety of others. (*Turman v. Turning Point of Cent. Cal., Inc.* (2010) 191 Cal.App.4th 53, 63.) "Oppression" means despicable conduct subjecting a person to cruel and unjust hardship, in conscious disregard of the person's rights. (*Ibid.*) "Fraud" is an intentional misrepresentation, deceit, or concealment of a material fact known by defendant, with intent to deprive a person of property, rights or otherwise cause injury. (*Ibid.*)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) "In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Ibid.*) "In ruling on a motion to strike, courts do not read allegations in isolation." (*Ibid.*) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042.)

Analysis

Punitive damages are recoverable against a landlord in a habitability action where the complaint alleges ultimate facts showing the landlord's failure to repair was not merely negligent but was carried out with knowledge of the conditions and a conscious disregard of the tenant's rights. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 919-921; *Penner v. Falk* (1984) 153 Cal.App.3d 858, 867.)

Defendant characterizes the complaint as alleging nothing more than an ordinary failure to repair. Plaintiff alleges Defendant did not merely neglect to fix the infestation and wiring defects present at Plaintiff's move-in, but Defendant told Plaintiff he would have to pay for the repairs himself. (Complaint ¶ 16.) That allegation, read in Plaintiff's favor as it must be on this motion, describes an affirmative response shifting onto the tenant a repair obligation the law places on the landlord, not a landlord who simply failed to get to it. A jury could reasonably infer conscious disregard of a tenant's rights from a landlord's decision to tell a tenant to bear the cost of conditions the landlord was obligated to correct, rather than from delay or inaction alone.

The complaint also alleges that after the Housing Authority's inspection confirmed the premises failed to meet applicable housing quality standards, Defendant served Plaintiff and his family a sixty-day notice to move out, stating that repairs needed to be made, but without offering relocation assistance. (Complaint ¶¶ 17-18.) Plaintiff alleges this notice was part of a pattern of harassment intended to force Plaintiff and his family to vacate. (*Id.* ¶¶ 22-23.) The timing of the notice, following a code enforcement finding Defendant had not addressed on its own, supports a reasonable inference of retaliatory intent.

These allegations are sufficient at the pleading stage to support a claim that Defendant acted with willful and conscious disregard of Plaintiff's rights. Whether Plaintiff will ultimately be able to prove malice, oppression, or fraud by clear and convincing evidence is beyond the scope of this motion.

6. 9:00 AM CASE NUMBER: C25-03333

CASE NAME: YESENIA RICO VS. JANE WANG

HEARING ON DEMURRER TO: CROSS-COMPLAINT

FILED BY: RICO, YESENIA

TENTATIVE RULING:

Cross-Defendant Yesenia Rico's demurrer to cross-complaint, and alternative motion to strike, is **continued to August 17, 2026 at 9:00 a.m.** in Department 34.

This action arises from a residential tenancy at 2065 Olivera Road, Unit D, a condominium in Concord. Plaintiff Yesenia Rico filed the operative complaint against her landlords, Jane Wang and Patrick Huang, alleging habitability defects in the unit. Wang and Huang filed a cross-complaint against Yesenia Rico and Noe Rico alleging that they breached the parties' written lease and committed waste on the property, based on alleged violations of the condominium's CC&Rs, physical damage to the unit, and refusal to permit access for inspection and repair. Rico demurs to the breach of contract and waste causes of action in the cross-complaint and, in the alternative, moves to strike certain allegations.

Before filing a demurrer, the demurring party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading subject to demurrer, for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41(a).) A declaration setting forth those efforts must accompany the demurrer. (Code Civ. Proc., § 430.41(a)(3).) The same meet and confer requirement applies to a motion to strike. (See Code Civ. Proc. § 435.5(a).)

Rico's counsel, Conrad Kuyawa, sought to satisfy this requirement by directing his paralegal to send a letter to Cross-Complainants' counsel, Gerard Lam, setting out the asserted defects in the cross-complaint. (April 28, 2026 Kuyawa Decl., ¶¶ 3-4, Exh. A.) In his reply declaration, Kuyawa asserts that this exchange was adequate because the letter was drafted at his direction and approved by him before it was sent, because section 430.41 does not require that meet and confer correspondence be transmitted by the attorney personally, and because a language barrier between counsel made a written exchange the more reliable way to avoid misunderstanding. (July 9, 2026 Kuyawa Decl., ¶¶ 5, 7, 11-12.)

Section 430.41(a) requires that the parties meet and confer in person, by telephone, or by video conference, not that one side send the other a letter stating its position. It is unclear whether the statute permits counsel to satisfy this requirement through a paralegal rather than personally, but even setting that question aside, a written exchange standing alone does not satisfy the statute. Nothing in this order precludes counsel from following an oral or video conference with a written confirmation of what was discussed and any agreements reached, which may be a good practice here.

The Court observes that the cross-complaint as currently pled does not identify the lease provision allegedly breached and does not separately state its theories of recovery. The pleading combines three theories of recovery: reimbursement for HOA fines arising from alleged CC&R violations, damages for waste to the property, and breach of a lease provision permitting entry for inspection and repair, none of which is separately stated or numbered as required by California Rules of Court, rule 2.112. The parties are encouraged to address these issues, along with any others raised in the moving and opposing papers, in a genuine effort to resolve them before the continued hearing. If the parties reach an agreement that Cross-Complainants will file an amended cross-complaint, they are